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STATE OF MICHIGAN
IN THE SUPREME COURT

AMY MCCORMICK and
ROBERT MCCORMICK,

Plaintiff-Appellee,

v.

MICHIGAN STATE UNIVERSITY,

Defendant-Appellant,

MSC No. 168334

COA No. 367598

Trial Court No. 22-00159-MK

# MICHIGAN ASSOCIATION FOR JUSTICE BRIEF *AMICUS CURIAE*

Channing Robinson-Holmes (P81698)
Pitt McGehee Palmer Bonanni & Rivers PC
117 W. 4th St., Ste. 200
Royal Oak, MI 48067-3848
(248) 398-9800
crobinson@pittlawp.com

Mark R. Bendure (P23490)
15450 E Jefferson Ave Ste 110
Grosse Pointe Park, MI 48230-2028
(313) 961-1525
bendurelaw@cs.com

Attorneys for *Amicus Curiae*
Michigan Association for Justice

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## STATEMENT OF INTEREST OF AMICUS CURIAE

The Michigan Association for Justice (MAJ)'s mission is

> *to promote a fair and effective justice system. We aim to support the work of attorneys in their efforts to ensure that any person who is injured by the misconduct or negligence of others can obtain justice in Michigan's courtrooms, even when taking on the most powerful interests.*

In the courtrooms across Michigan, MAJ is the voice of those who often have no other public voice. Our clients are those members of the public whose rights are most likely to be jeopardized by barriers to recovery such as a restriction on the ability to file suit against those who have harmed them.

As members of Michigan's bar, and as officers of the court, we recognize our responsibility to help the Court develop the State's jurisprudence. It is our mission to assist the Court in reaching decisions where all voices are heard and represented, in areas of law in which our members devote their professional lives. [1]

[1] Pursuant to MCR 7.312(H)(4), no counsel for a party to this appeal authored the brief in whole or in part nor made any monetary contribution intended to fund the preparation or submission of the brief. Any money contribution intended to fund the preparation or submission of the brief came from the Michigan Association for Justice, its members and its counsel.

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## STATEMENT OF QUESTIONS PRESENTED

1. Whether the fraudulent-concealment exception in MCL 600.5855 applies to the statutory notice period in MCL 600.6431(1).

2. Whether plaintiff's cause of action accrued at the time of the harm caused to plaintiff.

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## STATEMENT OF FACTS

The factual background giving rise to this appeal is aptly summarized by the Court of Appeals Opinion. As that opinion correctly notes, for summary disposition purposes, the allegations in the Complaint are accepted as true. The ultimate issue is whether the one-year notice period for claims against the State, MCL 600.6431(1), is tolled under MCL 600.5855 when a defendant fraudulently conceals the identity of the responsible party.

The Court of Appeals majority (Judges Maldonado and Garrett) concluded that the fraudulent concealment statute applied. Judge Michael J. Kelly dissented. The Court has granted argument of Defendant's Application for Leave to Appeal:

> "The parties shall file supplemental briefs in accordance with MCR 7.312(E), addressing: (1) whether the fraudulent-concealment exception in MCL 600.5855 applies to statutory notice period in MCL 600.6431(1); (2) whether the holding in *Doe v. Roman Catholic Archbishop of Archdiocese of Detroit*, 264 Mich App 632, 641 (2004), that "actions taken before the alleged injury "are not" capable of concealing causes of action that did not yet exist" applies in this case, and, if so, how; and (3) when the plaintiffs' cause of action accrued, see *Henry v. Dow Chemical Co.*, 501 Mich 965 (20185) and *Frank v. Linker*, 500 Mich 133 (2017)."

The Michigan Association for Justice ("MAJ") files this Amicus Curiae Brief. We address the first and third of these issues in asking the Court to affirm the decision of the Court of Appeals.

## ARGUMENT

### I. THE FRAUDULENT CONCEALMENT PROVISIONS OF MCL 600.5855 APPLY TO THE PERIOD FOR FILING UNDER NOTICE MCL 600.643(1).

Whether the two-year fraudulent concealment filing deadline of MCL 600.5855 applies to the statutory notice period in MCL 600.643(1) is a question of statutory interpretation. This Court "interpret[s] the words in the statute in light of their ordinary meaning and their context within the statute and read them harmoniously to give the effect to the statute as a whole". *Janetsky v. County of Saginaw*, ___ Mich___; ___NW3d___ (2025) (Docket No. 166477), 2025 WL 2095369, at *4

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(citations omitted). "The primary goal of statutory interpretation is to ascertain the legislative intent that may reasonably be inferred from the statutory language." *Id.* (citations omitted).

The notice and limitation provisions in question are set forth in the Court of Claims Act. The Court of Claims Act is itself "a chapter of the Revised Judicature Act (RJA), MCL 600.101, *et seq*., which broadly applies, in at least some manner, to all claims and demands against the state." *Christie v. Wayne State Univ*., 511 Mich 39, 62, 993 NW2d, 203, 215 (2023). The Revised Judicature Act "provides for tolling of the period of limitations in certain situations". *Trentadue v. Buckler Lawn Sprinkler*, 479 Mich 378, 388, 738 NW2d 664.670 (2007).

Suits against the State are subject to two time limitations. The statute of limitations is three years, MCL 600.6452(1).[2] The Claimant must first file notice within one year, MCL 600.6431(1):

> "Except as otherwise provided in this section, a claim may not be maintained against this state unless the claimant, within one year after the claim has accrued, files in the office of the clerk of the court of claims either a written claim or a written notice of intention to file a claim against this state or any of its departments, commissions, boards, institutions, arms, or agencies."

There is no dispute that the suit was filed within the three-year period to which the fraudulent concealment statute unquestionably applies. MCL 600.5855 states:

> "If a person who is or may be liable for any claim fraudulently conceals the existence of the claim or the identity of any person who is liable for the claim from the knowledge of the person entitled to sue on the claim, the action may be commenced at any time within two years after the person who is entitled to bring the action discovers, or should have discovered, the existence of the claim or the identity of the person who is liable for the claim, although the action would otherwise be barred by the period of limitations."

[2] "Every claim against this state, cognizable by the court of claims, is forever barred unless the claim is filed with the clerk of the court or an action is commenced on the claim in federal court as authorized in section 6440, within three years after the claim first accrues."

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Applying the unvarnished statutory language, the notice deadline only applies "[e]xcept as otherwise provided in this section". The fraudulent concealment tolling section is also part of The Revised Judicature Act and may "otherwise provide" a different filing deadline.

Likewise, the fraudulent concealment statute is unambiguous in its application. Whenever one who may be responsible conceals the identity of a wrongdoer ("If…"), "the action may be commenced at any time with the two years after" the identity is or should be discovered. By its very terms, the fraudulent concealment statute does not distinguish between notice periods and limitation periods. It applies to all instances of fraudulent concealment, creating a separate time when suit must be filed, "within two years…".

Here, the notice provision of the Court of Claims Act, MCL 600.6431, contains two distinct time limitations: a time limit for providing notice and a limitation for filing a lawsuit. Under the Court of Claims Act, a plaintiff must file notice or a lawsuit "within 1 year after the claim has accrued[.] "MCL 600.643(1). The notice provision contains a "period of limitation" because "[i]t is a statutory provision that requires a person who has a cause of action to bring suit.

Claimants who first file a notice of intent, they then have three years in which to file a suit in the Court of Claims. **MCL 600.6452(1)** (providing claims against the state are "forever barred unless the claim is filed with the clerk of the court ... within 3 years after the claim first accrues…"). No provision of the Court of Claims Act, including MCL 600.6431, purports in any way to modify, bar, or limit the application of MCL 600.5852(1). *St. Juliana v. State Police,* No. 370427, 2025 WL 2001132, at *7 (Mich. Ct. App. July 17, 2025) ("The wrongful-death saving provision is contained within Chapter 58 of the RJA, and MCL 600.6431 does not contain any language

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excluding the application of any provision within Chapter 58 of the RJA.").[3]

These two sections of the Court of Claims Act – the notice provision of MCL 600.6431 and the limitation for filing suit under MCL 600.6452 – work together, and thus a plaintiff can only file suit within the three-year period in accordance with MCL 600.6452 if they have first filed a notice within the period set forth in MCL 600.6431. *Mays v Governor of Mich*, 506 Mich 157, 209; 954 NW2d 139 (2020) (BERNSTEIN, J., concurring). Notice is filed for purposes of MCL 600.6431 upon submitting "a written claim or a written notice of intention to file a claim" in the office of the clerk of the Court of Claims. MCL 600.6431(1). A claim is filed for purposes of both MCL 600.6431 and MCL 600.6452(1) by the filing of a complaint.

**MCL 600.5855**, in turn, provides for the tolling of statutory limitations periods when "a person who is or may be liable for any claim fraudulently conceals the existence of the claim or the identify of any person who is liable for the claim from the knowledge of the person entitled to sue on the claim."

This Court now asks whether the fraudulent-concealment exception of MCL 600.5855 applies to both the three-year limitations period for filing suit under MCL 600.6452(1) and the one-year period for filing notice under MCL 600.6431. The Court of Appeals, relying on its prior decision in *Mays v Snyder*, 323 Mich App 1; 916 NW2d 227 (2018), which was affirmed by this Court in *Mays v Governor of Mich*, 506 Mich 157; 954 NW2d 139 (2020), correctly held that the

[3] In fact, the state defendants in *Mays* asserted the same argument, and the Court of Appeals correctly rejected it, holding:

> …the Legislature did not "omit" from the COCA any language from the statute-of-limitations provisions of the RJA. Rather, the Legislature specifically included language mandating application of the RJA's statute-of-limitations provisions—and exceptions—to the statute-of-limitations provisions of the CCA. See MCL 600.6452(2)." [*Mays*, 323 Mich App at 40, 916 NW2d 227].

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fraudulent concealment provision applies to both the period of limitations for filing suit and the period for filing notice, a conclusion that is supported by the language of the statutes as well as case law. *McCormick v. Michigan State Univ.*, No. 367598, 2025 WL 79186, at *3 (Mich. Ct. App. Jan. 10, 2025); *St. Juliana*, No. 370427, 2025 WL 2001132, at *9.

The Court of Claims Act provides that **"[e]xcept as modified by this section, the provisions of [Revised Judicature Act] chapter 58 [MCL 600.5801, et seq.], relative to the limitation of actions, shall also be applicable to the limitation prescribed in this section."** MCL 600.6452(2). The plain application of this statute incorporates the limitations set forth in MCL 600.5855 to the entirety of the Court of Claims Act. In both *Mays* and more recently in *St. Juliana v. State Police*, the Court of Appeals recognized that the "'Legislature, in crafting the [COCA], imported the fraudulent-concealment exception into its statute-of-limitations provision [in MCL 600.6452(2)]' but 'did not explicitly import the exception into the statutory notice provision [in § 6431] of the [COCA].'" *St. Juliana*, No. 370427, 2025 WL 2001132, at *7 (quoting *Mays*, 323 Mich App at 39). The Court of Claims Act incorporates and does not omit or exclude any of the periods or exceptions for limitations periods from Chapter 58 of the RJA. The fraudulent concealment provision of MCL 600.5855 is not an exception to the COCA. Instead, it is expressly incorporated in the Court of Claims Act, so there is no need for an exception to be re-stated in the Court of Claims Act to ensure its application. If the fraudulent concealment provision of MCL 600.5855 is not applied equally to the statutory period of limitations and the statutory notice period of the Court of Claims Act, then it has no meaning at all and it is effectively "negated," contrary to this Court's rules of statutory construction:

> "The Legislature clearly intended to incorporate the statutory limitations periods and exceptions, including the fraudulent-concealment exception of MCL 600.5855, into the CCA. See MCL 600.6452(2). If the fraudulent-concealment exception does not equally apply to both the statutory

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> limitation period and the statutory notice period under the CCA, then, contrary to our rules of statutory construction, its applicability is effectively negated."

Id., at * 9 (quoting *Mays*, 323 Mich App at 40-44, 916 NW2d 227 (citing *Apsey v Mem Hosp*, 477 Mich 120, 131, 730 NW2d 695 (2007)) (affirmed in *Mays v Governor of Mich*, 506 Mich 157; 954 NW2d 139 (2020))). [4]

Furthermore, to conclude that the Legislature, in writing either MCL 600.6431 and MCL 600.6452(2), did not intend to include the saving and tolling provisions of MCL 600.5852 would violate the rule that "[t]he Legislature is presumed to be familiar with the rules of statutory construction and to have considered the effect of a new law on existing laws." *Ostroth v. Warren Regency, GP, LLC*., 263 Mich App 1, 14–15, 687 NW2d 309, 318 (2004), aff'd, 474 Mich 36, 709 NW2d 589 (2006)(citing *Alma Piston Co v. Dep't of Treasury*, 236 Mich App 365, 370, 600 NW2d 144 (1999). The Legislature, in writing MCL 600.6452(2), said clearly that the provisions of the Revised Judicature Act relative to the limitations of actions are applicable. It said nothing about excluding or modifying the tolling rule set forth in MCL 600.5855, based on fraudulent concealment. Thus, as the Court of Appeals held in *Mays*, "the Legislature did not 'omit' from the COCA any language from the statute-of-limitations provisions of the RJA. Rather, the Legislature specifically included language mandating application of the RJA's statute-of-limitations

[4] In footnote 11 of its opinion in *Mays*, the Court of Appeals rejected the reasoning of two prior unpublished cases, *Brewer v Central Mich Univ Bd of Trustees*, unpublished per curiam opinion of the Court of Appeals, issued November 21, 2013 (Docket No. 312374); and *Zelek v. State of Michigan*, unpublished per curiam opinion of the Court of Appeals, issued October 16, 2012 (Docket No. 305191), which declined to apply the fraudulent-concealment provision of MCL 600.5855 to the notice provisions of MCL 600.6431. By affirming the Court of Appeals' decision in *Mays*, the Supreme Court implicitly rejected the reasoning of *Brewer* and *Zelek, and* clearly established that the holding of *Mays* is controlling. *See Mays v Snyder*, 323 Mich App 1, 44, 916 NW2d 227, 253 (2018), aff'd sub nom. *Mays v. Governor of Michigan*, 506 Mich 157, 954 NW2d 139 (2020)].

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provisions—and exceptions—to the statute-of-limitations provisions of the CCA. See MCL 600.6452(2)." *Mays*, 323 Mich App at 40, 916 NW2d 227.

This Court's decisions in medical malpractice actions, which contain a notice provision like that of MCL 600.6431, are similarly instructive. In *Lindsey v Harper Hosp*, 455 Mich 56; 564 NW2d 861 (1997), this Court explained that MCL 600.5852, as "the statute of limitations saving provision" and an "exception to the statute of limitations," operated "to suspend the running of the statute until a personal representative is appointed to represent the interests of the estate." *Lindsey*, 455 Mich at 64-65. In *Waltz v Wyse*, 569 Mich 642; 677 NW2d 813 (2004), this Court held that the wrongful death savings provision in MCL 600.5852 applies to both the notice and limitations periods applicable to medical malpractice actions. *Waltz*, 569 Mich 642, 648-649. "Section 5852 clearly provides that it is an exception to the limitation period, allowing the commencement of a wrongful death action as many as three years after the applicable statute of limitations has expired." *Waltz*, 469 Mich at 651.

Furthermore, the application of the savings and tolling provisions of the RJA (MCL 600.5801 et seq.) to toll both the notice period and statute of limitations in the Court of Claims Act is consistent with Michigan jurisprudence regarding statutory notice requirements, such as the harsh and unreasonable consequences doctrice. "Barring a lawsuit because the period of limitations has expired in cases where a claimant was unaware of the basis for the action is a harsh and unjust result." *Colaianni v. Stuart Frankel Dev Corp*, No. 282587, 2009 WL 1717388, at *3 & n. 2 (Mich App June 18, 2009), lv to appeal granted by 485 Mich 1070, 777 NW2d 410; appeal dismissed by stipulation in 488 Mich. 1019 (2010). Under Michigan law, an exception to a statute of limitations exists where "'it can be demonstrated that [statutes of limitations] are so harsh and unreasonable in their consequences that they effectively divest plaintiffs of the access to the courts intended by

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the grant of the substantive right.'" *Curtin v. Dep't of State Hwys*, 127 Mich App 160, 163 (1983) (citations omitted). In *Rusha v. Dep't of Corrections*, 307 Mich App 300, 307-314 (2014), the Court "recognized an exception to 'strict enforcement' of a notice period where one raises a constitutional claim and enforcement of that notice period would 'effectively divest plaintiffs of the access to the courts intended by the grant of the substantive right.'" *Bauserman v. Unemployment Insurance Agency*, 503 Mich 169, 181 & n 5 (quoting *Rusha*, 307 Mich App at 311 (quotation marks and citation omitted). "[T]he Court of Appeals applied this 'exception' on the basis of the allegedly 'harsh and unreasonable consequences' that would result from enforcement of the notice period in that particular case." *Id*. (quoting *Mays v Governor*, 323 Mich App 1, 30-35 (2018)).

## II. THIS COURT CLARIFIED THE LEGAL STANDARDS FOR ACCRUAL IN *BAUSERMAN*.

Under the Court of Claims Act, a plaintiff must file their notice or claim "within 6 months following the happening of the event giving rise to the cause of action." MCL 600.6431(3). In *Bauserman v Unemployment Ins Agency*, 503 Mich 169, 181 (2019), the Michigan Supreme Court resolved the question of "how to determine the 'event giving rise to the cause of action' for the purpose of triggering the six-month notice period[.]" *Bauserman*, 503 Mich at 181. "A 'cause of action' is defined as "[a] group of operative facts giving rise to one or more bases for suing; a factual situation that entitles one person to obtain a remedy in court from another person[.]" *Bauserman*, 503 Mich at 181-82 (quoting Black's Law Dictionary (10th ed.)). Thus, "an event has 'giv[en] rise to the cause of action' when that event 'origin[ates]' a 'basis for suing' and 'entitle[s] one person to obtain a remedy in court.' In other words, an 'event giv[es] rise to a cause of action' when it triggers a person's ability to obtain a remedy in court.'" *Id*. at 182 (citations omitted).

"With regard to claims seeking monetary relief, [there is] no meaningful distinction

between "the happening of the event giving rise to the cause of action" in MCL 600.6431(3) and when a claim accrues. MCL 600.5827 provides that a 'claim accrues at the time the wrong upon which the claim is based was done regardless of the time when damage results.'" *Bauserman*, 503 Mich at 183. Thus, "the date of the 'wrong' referred to in MCL 600.5827 is 'the date on which the defendant's breach harmed the plaintiff, as opposed to the date on which defendant breached his duty.'" *Id* (quoting *Frank v Linkner*, 500 Mich. 133, 147 (2017) (citation omitted). "The relevant 'harms' for that purpose are the actionable harms alleged in a plaintiff's cause of action." *Id* (quoting *Frank*, 500 Mich at 150).

Following *Bauserman*, "the 'actionable harm'…is the 'event giving rise to [a] cause of action' seeking monetary relief under MCL 600.6431(3). *Bauserman*, 503 Mich 183-84. "The harm that enables a plaintiff to bring an action for monetary relief (i.e., the 'actionable harm') necessarily 'originates' such a cause of action, and is, thus, 'the event giving rise to the cause of action.'" *Id*.

In *Bauserman*, the State claimed that the plaintiffs' due process claim accrued not when their property was seized by the State, but instead at an earlier date when the State notified plaintiffs that it was possible their property might be seized. The Court of Appeals accepted the State's position, "concluding that plaintiffs' claims accrued when they received the original redetermination notices alleging fraudulent conduct and explaining the effect that would have on their unemployment compensation. " *Bauserman v Unemployment Ins Agency*, 503 Mich 169, 178 (2019). "The Court of Appeals reasoned that the hallmark of a due-process claim is inadequate process and therefore that was the 'actionable harm' for the purposes of accrual; the subsequent seizing of plaintiffs' property merely reflected the damage resulting from that deprivation and did not establish the date of accrual." *Id*. at 178-79. The Supreme Court thus considered, on application



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for leave, "whether 'the happening of the event giving rise to [appellants'] cause of action" for the deprivation of property without due process occurred when the appellee issued its allegedly wrongful notice of redetermination, or when the appellee actually seized the appellants' property.'" *Id*. at 179. The Supreme Court reversed the decision of the Court of Appeals, holding that "a plaintiff incurs no harm under the Due Process Clause until and unless he or she incurs a deprivation of property. Thus, the 'actionable harm' in a pre-deprivation due-process claim occurs when a plaintiff has been deprived of property, and therefore such a claim 'accrues' when a plaintiff has first incurred the deprivation of property." *Id.* at 186. Thus, "the Court of Appeals erred by holding that plaintiffs' due-process claims seeking monetary relief accrued when plaintiffs were deprived of process. Rather, these claims accrued only when they were deprived of property, as they incurred no harm before that deprivation." *Id*. at 190. The Supreme Court rejected the state's argument "that either the redetermination notices or the notices of intent actually deprived plaintiffs of their property, rather than merely notifying them of the Agency's future intent to take their property. The Agency's notices of redetermination merely apprised plaintiffs of the amount owed to the Agency; these did not actually seize plaintiffs' property." *Id*. at 190-91. "Similarly, the notices of intent advised plaintiffs of what the Agency will (at some future time) undertake if a payment is not made, i.e., that a tax refund will be seized or that wages will be garnished, but again these did not actually deprive plaintiffs of their property." *Id. at* 191–92. "Absent any indication that the Agency's notifications contemporaneously impaired plaintiffs' property interests, we cannot conclude that such notices triggered the "actionable harm" for a claim alleging a violation of due process." *Id*. In other words, "merely expressing a future intent to deprive one of property is an insufficient triggering event." *Id.* at 192 & n. 17.

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## CONCLUSION

For the foregoing reasons, the Court should hold that the fraudulent concealment exception of MCL 600.5855 applies to the period for filing notice under MCL 600.6431(1) and, further, that a claim under the Court of Claims Act accrues when the harm to the plaintiff occurred, as opposed to when the defendant breached its duty.

Respectfully submitted,

By: s/ Channing Robinson-Holmes

Channing Robinson-Holmes (P81698)
Pitt McGehee Palmer Bonanni & Rivers PC
117 W. 4th St., Ste. 200
Royal Oak, MI 48067-3848
(248) 398-9800
crobinson@pittlawp.com

Mark R. Bendure (P23490)
15450 E Jefferson Ave Ste 110
Grosse Pointe Park, MI 48230-2028
(313) 961-1525
bendurelaw@cs.com

Attorneys for *Amicus Curiae*
Michigan Association for Justice

Dated: January 15, 2026

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**ATTESTATION OF TAX-EXEMPT STATUS OF AMICUS CURIAE**

This brief is filed without a motion for leave pursuant to Michigan Court Rule 7.212(B)(2) because amicus curiae, Michigan's Association for Justice, is a tax-exempt organization under Internal Revue Code, 26 USC 501.

**WORD COUNT STATEMENT**

This brief contains 3,787 words in the sections covered by MCR 7.212(C)(6)-(8).

Respectfully submitted,

By: s/ Channing Robinson-Holmes

Channing Robinson-Holmes (P81698)
Pitt McGehee Palmer Bonanni & Rivers PC
117 W. 4th St., Ste. 200
Royal Oak, MI 48067-3848
(248) 398-9800
crobinson@pittlawp.com

Mark R. Bendure (P23490)
15450 E Jefferson Ave Ste 110
Grosse Pointe Park, MI 48230-2028
(313) 961-1525
bendurelaw@cs.com

Attorneys for *Amicus Curiae*
Michigan Association for Justice

Dated: January 15, 2026